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Study Notes

**THE BHARATIYA NYAYA
SANHITA, 2023
Chapter VI - XI**

OF OFFENCES AFFECTING THE HUMAN BODY CHAPTER VI SECTION 100-146

OF OFFENCES AFFECTING LIFE

▪ **CULPABLE HOMICIDE (section 100):**

- The word homicide is **derived from two Latin words “Homo and Cido”**.
- **Homo means human and Cido means killing by a human.**
- **Homicide means killing of a human being by another human being.**
- A homicide **can be lawful or unlawful**. Lawful homicide includes situations where a person who has caused the death of another cannot be blamed for his death.
- Culpable Homicide is in the category of unlawful homicide. The word Culpable means blame worthy. Thus, **Culpable Homicide means killing of a human being by another human being in a blameworthy or criminal manner.**
- As per this section Culpable Homicide means **causing death intentionally, by intending to cause death or inflicting serious bodily injury likely to result in death, or knowingly engaging in an act with the awareness that it is likely to cause death**, is considered the offense of culpable homicide.
 - o Example: A lays sticks and turf over a pit, with the intention of thereby causing death, or with the knowledge that death is likely to be thereby caused. Z, believing the ground to be firm, treads on it, falls in and is killed. A has committed the offence of culpable homicide.
- If a person causes bodily injury to another who is already suffering from a disorder, disease, or bodily infirmity, and thereby speeds up the death of that person, **it will be considered as causing death.**
- If death is a result of bodily injury, the person causing **such injury will be considered to have caused the death, even if proper remedies and skillful treatment could have prevented it.**
- Causing the death of a child in the mother's womb **is not considered homicide**. However, causing the death of a living child, even if partially born and not yet fully breathed, **may amount to culpable homicide.**
- Section 101 deals with Culpable Homicide amounting to murder which states that culpable homicide is murder in certain situations. This makes us come to two conclusions:
 - o For an act to be classified as murder it must first meet all the conditions of culpable homicide.
 - o All acts of murder are culpable homicide, but all acts of culpable homicides are not murder.

SECTION 101 STATES THAT CULPABLE HOMICIDE IS MURDER IN CERTAIN SITUATIONS

- For an act to be classified as murder it must first meet all the conditions of culpable homicide.
- All acts of murder are culpable homicide, but all acts of culpable homicides are not murder.

▪ **MURDER (Section 101):**

• **Culpable homicide is considered murder, except in certain cases when:**

- o The act causing death is done with the *intention of causing death*.
- o The act causing death is done with the *intention of causing bodily injury known to likely cause death*.
- o The act causing death is done with *the intention of causing bodily injury, and the intended injury is sufficient to cause death in the ordinary course of nature*.
- o The person committing the act knows it is so dangerous that it will probably *cause death or serious bodily injury and commits the act without any excuse for taking such a risk*.

✚ Example: A shoots Z with the intention of killing him. Z dies in consequence. A commits murder.

✚ Example: A intentionally gives Z a sword-cut or club-wound sufficient to cause the death of a man in the ordinary course of nature. Z dies in consequence. Here A is guilty of murder, although he may not have intended to cause Z's death.

CULPABLE HOMICIDE AMOUNTING TO MURDER

Intention of causing death

Intention of causing bodily injury known to likely cause death

Intention of causing bodily injury, and the intended injury is sufficient to cause death in the ordinary course of nature

Cause death or serious bodily injury and commits the act without any excuse for taking such a risk

CULPABLE HOMICIDE NOT AMOUNTING TO MURDER

Caused due to grave and sudden provocation

Offender acts in good faith exercising right of private defence

Act of public servant or aiding a public servant in good faith in discharge of his duty

Act committed in a sudden fight, over a sudden quarrel, in the heat of passion and without premeditation

If person above 18 years of age, risks his life voluntarily with his free consent

▪ **CULPABLE HOMICIDE BY CAUSING DEATH OF PERSON OTHER THAN PERSON WHOSE DEATH WAS INTENDED (Section 102):**

- If a person, while intending or knowing that their actions are likely to cause death, **commits culpable homicide resulting in the death of a person they neither intended nor knew would likely die, the culpable homicide is of the same**

type as if they had caused the death of the person they intended or knew to be likely to die.

KEY SECTIONS AND PENALTIES FOR INFLICTING HARM

SECTIONS	PUNISHMENTS
Section 103 Punishment for murder	Death or imprisonment for life , and shall also be liable to fine
Section 104 Punishment for murder by life-convict	Death or with imprisonment for life , which shall mean the remainder of that person's natural life
Section 105 Punishment for culpable homicide not amounting to murder	Imprisonment for life , or imprisonment of either description for a term which shall not be less than five years but which may extend to ten years , and shall also be liable to fine
Section 106 Causing death by negligence	Inflicting harm can result in imprisonment for up to five years , along with a fine . If committed by a registered medical practitioner during a medical procedure, the punishment is imprisonment for up to two years, and fine . Causing death through careless driving and failing to report it to the authorities may lead to imprisonment for up to ten years , along with a fine .
Section 107 Abetment of suicide of child or person of unsound mind	Death or imprisonment for life , or imprisonment for a term not exceeding ten years , and shall also be liable to fine
Section 108 Abetment of suicide	Imprisonment of either description for a term which may extend to ten years , and shall also be liable to fine
Section 109 Attempt to murder	Deliberately doing something, knowing it could lead to death shall be imprisoned up to ten years and a fine . Action if harms someone, the punishment shall be life imprisonment or another specified penalty . Already serving a life sentence, causes harm under the mentioned circumstances, shall be punished with either the death penalty or imprisonment for the rest of their natural life
Section 110 Attempt to commit culpable homicide	Knowingly doing something that could lead to death, but it is not considered murder, shall be punished with imprisonment up to three years or a fine, or both . Act causes harm, the penalty shall be up to seven years in prison or fine, or both

▪ ORGANISED CRIME (Section 111):

- Any ongoing illegal activities such as kidnapping, robbery, vehicle theft, extortion, land grabbing, contract killing, economic offenses, cybercrimes, human trafficking, drug trafficking, weapon trafficking, or any illicit activities carried out by an individual or group, whether as part of an organized crime syndicate or on its behalf, using violence, threats, intimidation, coercion, or other unlawful means to gain material or financial benefits, are considered organized crime.
- If someone engages in organized crime:
 - If the offense leads to someone's death, they shall be punished with **death penalty or life imprisonment, along with a fine of at least ten lakh rupees**.
 - In any other case, they shall be **sentenced to a term of imprisonment between five years and life, coupled with a fine of at least five lakh rupees**.
- Anyone aiding, attempting, conspiring, or knowingly assisting in the commission of organized crime, or engaging in any preparatory act, shall be punished with **imprisonment ranging from five years to life, along with a fine of at least five lakh rupees**.

- A member of an organized crime syndicate shall be punished with **imprisonment for a minimum of five years, extendable to life imprisonment, and a fine of at least five lakh rupees.**
- Anyone deliberately hiding or sheltering a person involved in organized crime shall be sentenced to a minimum of three years in prison, extendable to life imprisonment, and fined at least five lakh rupees. However, this provision does not apply if the person providing shelter is the spouse of the offender.
- Possessing property obtained from organized crime or its proceeds shall be punished with **imprisonment for a minimum of three years, up to life imprisonment, and a fine of at least two lakh rupees.**
- If someone, on behalf of an organized crime syndicate member, possesses property without a satisfactory explanation, they shall be punished with **imprisonment for a minimum of three years, extendable to ten years, and a fine of at least one lakh rupees.**

MEANING

- **"Organized crime syndicate"** refers to a group of two or more individuals, working together either independently or collectively as a gang, engaging in ongoing illegal activities.
- **"Continuing unlawful activity"** is when a person, either alone or as part of an organized crime group, commits a prohibited action punishable by imprisonment of three years or more. This includes economic offenses and applies when multiple charge sheets have been filed in the last ten years, and a court has recognized the offense.
- **"Economic offense"** encompasses crimes like criminal breach of trust, forgery, counterfeiting currency, engaging in hawala transactions, committing mass-marketing fraud, running fraudulent schemes, or any act with the intent to defraud banks, financial institutions, or other organizations

▪ **PETTY ORGANISED CRIME (Section 112):**

- Being part of a group or gang, if someone commits theft, snatching, cheating, unauthorized selling of tickets, unauthorized betting, gambling, selling public examination question papers, or similar criminal acts, it is **considered petty organized crime.**
- Committing any petty organized crime shall result in **imprisonment for a minimum of one year, extendable to seven years, along with a fine.**

▪ **TERRORIST ACT (Section 113):**

- Engaging in acts with the intent to threaten India's unity, integrity, sovereignty, security, or economic security, or to instill terror in people within India or abroad:
 - by engaging in acts, such as using explosives, firearms, or hazardous substances, with the intent to cause death, injury, property damage,

disruption of essential services, harm to monetary stability, or destruction of defense-related properties in India or abroad.

- o *by using criminal force or its display*, attempting to do so, causing death, or attempting to cause death of any public functionary; or
- o *by detaining, kidnapping, or abducting a person, threatening to harm or kill them, or performing any act to force* the Government of India, any State Government, a foreign country's government, an international organization, or any person to perform or refrain from an act,

shall constitute a terrorist act.

MEANING

- **"Public functionary"** refers to constitutional authorities or any other functionary designated as such by the Central Government through an Official Gazette notification.
- **"Counterfeit Indian currency"** is currency declared as fake by an authorized forensic authority after examination, imitating or compromising key security features of Indian currency.

- **Committing a terrorist act shall result in:**
 - o *death penalty or life imprisonment, along with a fine* if the act causes someone's death
 - o *imprisonment for a minimum of five years, extendable to life, and a fine* in other cases.
- Conspiring, attempting, advocating, abetting, advising, or facilitating a terrorist act or any preparatory act shall be punishable **with imprisonment for a minimum of five years, extendable to life, along with a fine.**
- Organizing training camps for terrorist acts or recruiting individuals for such acts shall be punishable with imprisonment for a minimum of **five years, which may extend to imprisonment for life, and shall also be liable to fine.**
- Being a member of an organization involved in terrorist acts **shall be punished with imprisonment for life and fine.**
- Harboring or concealing someone who committed a terrorist act shall be **punishable with imprisonment for a minimum three-years, extendable to life, and fine.**
 - o *Exception:* This rule does not apply if the offender's spouse is involved in the concealment.
- Possessing property obtained from a terrorist act shall **be punishable with imprisonment for life and fine.**
 - o The decision on whether to register the case under this section or the Unlawful Activities (Prevention) Act, 1967, *will be made by an officer not below the rank of Superintendent of Police.*

OF HURT

▪ HURT (Section 114):

- Causing:

- o *bodily pain,*
- o *disease, or*
- o *infirmity to a person*

is referred to as causing "hurt."

▪ VOLUNTARILY CAUSING HURT (Section 115):

- Causing harm to someone intentionally or with knowledge that it may occur is termed "voluntarily causing hurt."
- Anyone, other than in certain specified cases under section 122(1), who voluntarily causes hurt, shall **be punished with imprisonment up to one year, a fine up to ten thousand rupees, or both.**

▪ GRIEVOUS HURT (Section 116):

- The following types of **severe harm are categorized as "grievous hurt"**:
 - o *Emasculation*
 - o *Permanent loss of sight in either eye*
 - o *Permanent loss of hearing in either ear*
 - o *Loss of any limb or joint*
 - o *Destruction or permanent impairment of any limb or joint*
 - o *Permanent disfigurement of the head or face*
 - o *Fracture or dislocation of a bone or tooth*
 - o *Any injury that endangers life or causes severe bodily pain for fifteen days, making the person unable to pursue their regular activities.*

▪ VOLUNTARILY CAUSING GRIEVOUS HURT (Section 117):

- Causing severe harm intentionally, knowing it might be grievous hurt, and **actually causing grievous hurt** is termed "voluntarily causing grievous hurt."
- Committing an offense as mentioned above and causing permanent disability or a persistent vegetative state resulting in hurt shall **be punished with rigorous imprisonment for a minimum of ten years, extendable to life imprisonment**, meaning imprisonment for the rest of the individual's natural life.
- To be considered as voluntarily causing grievous hurt, a person **must both cause and intend or know that grievous hurt is likely.** However, if the intention or knowledge is about causing one type of grievous hurt but the actual harm caused is of a different kind, it is still considered voluntarily causing grievous hurt.
 - o Example: A, intending or knowing himself to be likely permanently to disfigure Z's face, gives Z a blow which does not permanently disfigure Z's

face, but which causes Z to suffer severe bodily pain for the space of fifteen days. A has voluntarily caused grievous hurt.

- Causing grievous hurt voluntarily, except in cases specified in Section 122(2), shall **be punished with imprisonment for up to seven years and a fine.**
 - When a group of five or more persons, working together, inflicts grievous hurt on an individual based on factors like race, caste, community, sex, place of birth, language, personal belief, or similar grounds, **each member of the group is guilty of causing grievous hurt.** The punishment **includes imprisonment for up to seven years and a fine.**
- **VOLUNTARILY CAUSING HURT OR GRIEVOUS HURT BY DANGEROUS WEAPONS OR MEANS (Section 118):**
- **Causing hurt intentionally using instruments** like weapons, fire, poison, explosives, or harmful substances shall **be punished with imprisonment up to three years, a fine up to twenty thousand rupees, or both,** except in cases specified in Section 122(1).
 - **Causing grievous hurt intentionally using any means** as mentioned above, except in cases specified in Section 122(2), shall be punished. The penalty shall **include imprisonment for life or imprisonment ranging from one year to ten years, along with a fine.**
- **VOLUNTARILY CAUSING HURT OR GRIEVOUS HURT TO EXTORT PROPERTY, OR TO CONSTRAIN TO AN ILLEGAL ACT (Section 119):**
- Causing hurt intentionally to extort property or valuable security or to compel the victim or related persons to engage in illegal activities shall be punished with imprisonment **for up to ten years, along with a fine.**
 - Causing grievous hurt intentionally for any purpose specified above shall **be punished with imprisonment for life or imprisonment for a term up to ten years, along with a fine.**
- **VOLUNTARILY CAUSING HURT OR GRIEVOUS HURT TO EXTORT CONFESSION, OR TO COMPEL RESTORATION OF PROPERTY (Section 120):**
- If someone intentionally hurts another person to force them or someone related to them to confess, provide information, return property, settle a claim, or reveal details that could help detect a crime, they shall **be punished with imprisonment for up to seven years and fined.**
 - o A, a police officer, tortures Z in order to induce Z to confess that he committed a crime. A is guilty of an offence under this section.
- **VOLUNTARILY CAUSING HURT OR GRIEVOUS HURT TO DETER PUBLIC SERVANT FROM HIS DUTY (section 121):**
- If someone voluntarily causes hurts a public servant while they are doing their job, or with the intent to stop them from doing their duty, they shall **be punished with imprisonment up to five years or with fine, or both.**

- If someone voluntarily causes serious hurt to a public servant while they are doing their job, or with the intent to stop them from doing their duty, they shall **be punishable with imprisonment for at least one year, up to a maximum of ten years, and shall also be liable to fine.**
- **VOLUNTARILY CAUSING HURT OR GRIEVOUS HURT ON PROVOCATION (Section 122):**
 - If someone hurts another person in response to serious and immediate provocation, and they did not mean to harm anyone else, they shall **be punished with imprisonment up to one month or with fine of up to five thousand rupees, or with both.**
 - If someone causes serious harm to another person in response to intense and immediate provocation, and they did not mean to harm anyone else seriously, they shall **be punished with imprisonment up to five years or with fine of up to ten thousand rupees, or with both.**
- **CAUSING HURT BY MEANS OF POISON, ETC., WITH INTENT TO COMMIT AN OFFENCE (Section 123):**
 - If someone gives another person poison or any harmful substance intending to cause harm, commit a crime, or knowing it could cause harm, they shall **be punished with imprisonment for up to ten years and shall also be liable to fine.**
- **VOLUNTARILY CAUSING GRIEVOUS HURT BY USE OF ACID, ETC. (Section 124):**
 - Causing severe harm, deformity, or disability to someone by throwing acid or using any means with the intent to cause such injury shall **be punishable with imprisonment for a minimum of ten years extendable up to life and with fine.** *Fine, meant to cover medical expenses, will be imposed and paid to the victim.*
 - If someone tries to throw acid on another person or use any means to cause permanent harm or severe injuries, they shall **be sentenced to imprisonment for a minimum of five years extendable up to seven years, and shall also be liable to fine.**
 - Permanent or partial damage or deformity or permanent vegetative state shall not be required to be irreversible.

MEANING

- **"Acid"** includes any substance which has acidic or corrosive character or burning nature, that is capable of causing bodily injury leading to scars or disfigurement or temporary or permanent disability.

▪ **ACT ENDANGERING LIFE OR PERSONAL SAFETY OF OTHERS (Section 125)**

- If someone endangers others recklessly, they shall **be punished with imprisonment of three months, or with fine which may extend to two thousand five hundred rupees, or with both.**
 - If their actions cause harm, the penalty shall extend *to six months imprisonment, or with fine which may extend to five thousand rupees, or with both.*
 - If severe harm occurs, the punishment shall *be imprisonment up to three years or with fine of up to ten thousand rupees, or with both.*

OF WRONGFUL RESTRAINT AND WRONGFUL CONFINEMENT

▪ **WRONGFUL RESTRAINT (Section 126):**

- **If someone deliberately blocks another person's path, stopping them from going where they have the right to go,** it's considered wrongful restraint.
 - However, the obstruction of a private way over land or water which a person in good faith believes himself to have a lawful right to obstruct, *is not an offence under this rule.*
 - Example: A obstructs a path along which Z has a right to pass, A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.
- **Punishment:** *simple imprisonment for up to one month or with fine which may extend to five thousand rupees, or with both.*

▪ **WRONGFUL CONFINEMENT (Section 127):**

- **If someone unlawfully stops another person from going beyond certain limits,** it is called "wrongfully confining" that person.
 - Example: A causes Z to go within a walled space, and locks Z in. Z is thus prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z.
- **Punishment:** *imprisonment for up to one year or with fine of up to five thousand rupees, or with both.*
- If someone unlawfully restricts another person for **three days or more**, they shall be punished **with imprisonment for up to three years or with fine of up to ten thousand rupees, or with both.**
- If someone unlawfully restricts another person for **ten days or more**, they shall **be sentenced to imprisonment for up to five years and fined a minimum of ten thousand rupees.**
- If someone unlawfully keeps a person **confined, knowing that a Court order for their release has been issued**, they shall **be punished with imprisonment for up to two years, in addition to any other punishment they may receive under this chapter, and shall also be fined.**

- If someone unlawfully confines a person **with the intention to keep it secret from anyone concerned or authorities**, they shall **be sentenced to imprisonment for up to three years, in addition to any other punishment for wrongful confinement, and shall also be liable to fine.**
- If someone unlawfully confines a person to **force them or someone connected to them to give up property, valuable items, or do something illegal**, they shall **be sentenced to imprisonment for up to three years and shall also be liable to fine.**
- If someone unlawfully confines a person **for the purpose of extorting from them or someone related to them** to confess, provide information, return property, settle a claim, or give information for the detection of an offense, they shall **be sentenced to imprisonment for up to three years and shall also be liable to fined.**

OF CRIMINAL FORCE AND ASSAULT

▪ **FORCE (Section 128):**

- A person is considered to use force against another **if they make that person move, change their motion, or stop moving**. This also applies **if they cause any substance to move or change in a way that brings it into contact with the other person's body or anything they are wearing, or with anything so situated that such contact affects that other's sense of feeling.**
 - o The force can be applied by:
 - ✚ *the person's own physical effort,*
 - ✚ *arranging a substance to cause motion without further action, or*
 - ✚ *influencing an animal to move or change its motion.*

▪ **CRIMINAL FORCE (Section 129):**

- If someone **deliberately applies force to another person without their agreement, with the intention of committing an offense or causing harm, fear, or annoyance**, it is considered criminal force.
 - o Example: Z is riding in a palanquin. A, intending to rob Z, seizes the pole and stops the palanquin. Here A has caused cessation of motion to Z, and he has done this by his own bodily power. A has therefore used force to Z; and as A has acted thus intentionally, without Z's consent, in order to the commission of an offence. A has used criminal force to Z.

▪ **ASSAULT (Section 130):**

- If someone **makes a gesture or prepares in a way that they know might make others think they are about to use criminal force**, it's considered an assault.
- **Mere words do not amount to an assault**, but the combination of words and actions can turn gestures or preparations into an assault.

- o Example: A shakes his fist at Z, intending or knowing it to be likely that he may thereby cause Z to believe that A is about to strike Z. A has committed an assault.
- **PUNISHMENT FOR ASSAULT OR CRIMINAL FORCE OTHERWISE THAN ON GRAVE PROVOCATION (Section 131):**
 - If someone assaults or uses criminal force against another person without that person giving a serious and immediate reason, they shall **be punished with imprisonment for up to three months or with fine of up to one thousand rupees, or with both.**
 - **If the provocation is intentionally sought or provoked by the offender, or if it arises from legal actions, the punishment shall not be reduced.**
 - Whether the provocation is significant enough to lessen the offense is **determined as a matter of fact.**
- **ASSAULT OR CRIMINAL FORCE TO DETER PUBLIC SERVANT FROM DISCHARGE OF HIS DUTY (Section 132):**
 - If someone assaults or uses criminal force against a public servant while they are doing their job, or with the intent to stop them from discharging their duty, they shall **be sentenced to imprisonment for up to two years or with fine, or with both.**
- **ASSAULT OR CRIMINAL FORCE WITH INTENT TO DISHONOUR PERSON, OTHERWISE THAN ON GRAVE PROVOCATION (Section 133):**
 - If someone assaults or uses criminal force against another person with the intention of dishonoring them, without a serious and immediate provocation from that person, they shall **be punished with imprisonment for up to two years or with fine or with both.**
- **ASSAULT OR CRIMINAL FORCE IN ATTEMPT TO COMMIT THEFT OF PROPERTY CARRIED BY A PERSON (Section 134):**
 - If someone assaults or uses criminal force against another person while attempting to steal something they are wearing or carrying, they shall **be punished with imprisonment for up to two years or with fine, or with both.**
- **ASSAULT OR CRIMINAL FORCE IN ATTEMPT TO WRONGFULLY CONFINED A PERSON (Section 135):**
 - If someone assaults or uses criminal force while trying to unlawfully confine another person, they shall **be sentenced to imprisonment for up to one year or with fine up to five thousand rupees, or with both.**
- **ASSAULT OR CRIMINAL FORCE ON GRAVE PROVOCATION (Section 136):**

- If someone assaults or uses criminal force against another person due to serious and immediate provocation from that person, they shall **be punished with simple imprisonment for up to one month or with fine up to one thousand rupees, or with both.**

OF KIDNAPPING, ABDUCTION, SLAVERY AND FORCED LABOUR

▪ **KIDNAPPING (Section 137):**

- **Kidnapping is of two types:**
 - o *kidnapping from India* occurs when someone takes a person beyond India's borders without their or their authorized guardian's consent and
 - o *kidnapping from lawful guardianship* involves taking a child or a person with unsound mind away from their lawful guardian without consent.
- **The term "lawful guardian" includes** anyone legally entrusted with their care.
- There is **an exception for a person acting in good faith** believing they are the father of an illegitimate child or entitled to lawful custody, unless the act is for an immoral or unlawful purpose.
- Whoever kidnaps someone shall **be punished with imprisonment for up to seven years and shall also be liable to fine.**

▪ **ABDUCTION (Section 138):**

- **If someone uses force or deceitful methods to make a person leave a place,** it is called abduction.

▪ **KIDNAPPING OR MAIMING A CHILD FOR PURPOSES OF BEGGING (Section 139):**

- If anyone kidnaps a child or, without being the lawful guardian, takes custody of the child with the intention of using them for begging, they shall **be punished with rigorous imprisonment for at least ten years, up to life imprisonment, and shall also be liable to fine.**
- Anyone causing severe harm to a child for the purpose of using them for begging shall **be imprisoned for a minimum of twenty years, up to life imprisonment, along with a fine.**
- If a person, not the lawful guardian, employs or uses a child for begging, it is presumed, unless proven otherwise, that **they kidnapped or obtained custody of the child for begging purposes.**
- **"Begging" means:**
 - o *asking for or receiving* alms in public by pretending to sing, dance, tell fortunes, perform tricks, sell items, or in any other way;
 - o *going onto private property to ask* for or receive alms;
 - o *displaying or showing, with the intention of getting alms,* any sore, wound, injury, deformity, or disease, whether it's on oneself, another person, or an animal;

- o using a child as an exhibit with the aim of asking for or receiving alms.

▪ **KIDNAPPING OR ABDUCTING IN ORDER TO MURDER OR FOR RANSOM, ETC. (Section 140):**

- If someone kidnaps a person with the intention of murdering them or putting them in danger of being murdered, they shall **be sentenced to life imprisonment or rigorous imprisonment for up to ten years, along with fine.**
 - o *Example:* A kidnaps Z from India, intending or knowing it to be likely that Z may be sacrificed to an idol. A has committed the offence defined in this section.
- If someone kidnaps a person, keeps them in detention, and threatens to cause harm or actually causes harm to compel the government, foreign state, organization, or another person to do something or pay a ransom, they shall **be punished with death or life imprisonment, along with a fine.**
- If someone kidnaps a person with the intention of secretly and wrongfully confining them, they shall **be punished with imprisonment for up to seven years and shall also be liable to fine.**
- If someone kidnaps a person with the intention of causing them grievous harm, slavery, or subjecting them to unnatural acts or puts them in danger of such treatment, they shall **be punished with imprisonment for up to ten years and shall also be liable to fine.**

▪ **IMPORTATION OF GIRL OR BOY FROM FOREIGN COUNTRY (Section 141):**

- If someone brings a girl under 21 years or a boy under 18 years into India from another country, intending or knowing that they will likely be forced or seduced into illicit intercourse with someone, they shall **be punished with imprisonment for up to ten years and shall also be liable to fine.**

▪ **TRAFFICKING OF PERSON (Section 142):**

- **Engaging in trafficking involves** recruiting, transporting, harboring, transferring, or receiving a person for exploitation. This can **be done through** threats, force, coercion, abduction, fraud, abuse of power, or inducement, including the exchange of payments or benefits to gain the consent of someone in control of the person being trafficked.
 - o **“Exploitation” shall include** any act of physical exploitation or any form of sexual exploitation, slavery or practices similar to slavery, servitude, beggary or forced removal of organs.
 - o *The consent of the victim is immaterial in determination of the offence of trafficking.*
- **Punishment:** *Rigorous imprisonment for a minimum of seven years, up to ten years, and shall also be liable to fine.*

- o Offence involves the **trafficking of more than one person**, it shall be punishable with rigorous for a minimum of ten years, up to life imprisonment, and shall also be liable to fine.
 - o Offence involves the **trafficking of a child**, it shall be punishable with rigorous imprisonment for a minimum of ten years, up to imprisonment for life, and shall also be liable to fine.
 - o Offence involves the **trafficking of more than one child**, it shall be punishable with rigorous imprisonment for a minimum of fourteen years, up to imprisonment for life, and shall also be liable to fine.
 - o A person is convicted of **trafficking a child multiple times**, they shall be sentenced to life imprisonment, meaning imprisonment for the rest of their natural life, and shall also be liable to fine.
 - o A **public servant or police officer is involved in human trafficking**, they shall be punished with life imprisonment, meaning imprisonment for the rest of their natural life, and shall also be liable to fine.
- **EXPLOITATION OF A TRAFFICKED PERSON (Section 144):**
 - If someone exploits a trafficked child for sexual purposes, they shall be **imprisoned for a minimum of five years, up to ten years, and shall also be fined.**
 - Similarly, engaging in sexual exploitation of a trafficked person shall **lead to imprisonment for a minimum of three years, up to seven years, along with fine.**
 - **HABITUAL DEALING IN SLAVES (Section 145):**
 - Engaging in the habitual import, export, removal, purchase, sale, trafficking, or dealing in slaves shall **be punishable by either life imprisonment or imprisonment for a term up to ten years, along with a fine.**
 - **UNLAWFUL COMPULSORY LABOUR (Section 146):**
 - Forcing someone to work against their will shall be punishable with **imprisonment for up to one year or with fine, or with both.**

OF OFFENCES AGAINST THE STATE CHAPTER VII SECTION 147-158

- The main object of including this chapter is **to punish each and every individual who tries to create some kind of discord or disharmony between the Government and the people.** In a democratic country it will be very harmful to the interests of the people at large if any person(s) wages war against the State and disrupts peace. The chapter also punishes certain offences like "sedition" which are termed serious offences against the state.

- IN THIS CHAPTER SECTION HAS BEEN REMOVED AS AN OFFENCE.
- Instead, there is a new offence for acts endangering India's sovereignty, unity and integrity.

- **WAGING, OR ATTEMPTING TO WAGE WAR, OR ABETTING WAGING OF WAR, AGAINST GOVERNMENT OF INDIA (Section 147):**
 - Engaging in or attempting to wage war against the Government of India, or supporting such actions, shall **be punishable with death or life imprisonment, and shall also be liable for fine.**
 - o Example: A joins an insurrection against the Government of India. A has committed the offence defined in this section.
- **CONSPIRACY TO COMMIT OFFENCES PUNISHABLE BY SECTION 147 (Section 148):**
 - Anyone conspiring to commit offenses punishable under Section 147, or conspiring to overawe the Central Government or any State Government using criminal force, shall **be liable to imprisonment for life or up to ten years, along with a fine.**
 - The actual commission of an illegal act is **not necessary for a conspiracy** under this section.
- **COLLECTING ARMS, ETC., WITH INTENTION OF WAGING WAR AGAINST GOVERNMENT OF INDIA (Section 149):**
 - Anyone gathering men, arms, or ammunition or preparing to wage war with the intention of waging or being prepared to wage war against the Government of India shall **be punished with either life imprisonment or imprisonment for up to ten years, and shall also be liable to fine.**
- **CONCEALING WITH INTENT TO FACILITATE DESIGN TO WAGE WAR (Section 150):**
 - Anyone who hides the existence of a plan to wage war against the Government of India, intending to facilitate or knowing it will likely facilitate such war, can be punished with imprisonment for a term up to ten years and fined.
- **ASSAULTING PRESIDENT, GOVERNOR, ETC., WITH INTENT TO COMPEL OR RESTRAIN EXERCISE OF ANY LAWFUL POWER (Section 151):**
 - Anyone intending to influence or force the President of India or Governor of any State to exercise or refrain from exercising their lawful powers, through assault, wrongful restraint, or intimidation using criminal force, shall **be punished with imprisonment for up to seven years and shall also be liable to fine.**

- **ACT ENDANGERING SOVEREIGNTY, UNITY AND INTEGRITY OF INDIA (Section 152):**
 - **Anyone purposefully or knowingly** using words, signs, visible representation, electronic communication, financial means, or any other method to incite secession, armed rebellion, subversive activities, or encourage separatist feelings that **endanger India's sovereignty, unity, and integrity** shall **be punished with life imprisonment or imprisonment up to seven years, along with a fine.**
 - **Expressing disapproval of Government measures by lawful means**, without attempting the activities mentioned in this section, **does not constitute an offense under this section.**
- **WAGING WAR AGAINST GOVERNMENT OF ANY FOREIGN STATE AT PEACE WITH GOVERNMENT OF INDIA (Section 153):**
 - Engaging in or attempting to wage war against a foreign State at peace with the Government of India, or aiding such actions, shall **be punished with imprisonment for life, to which fine may be added, or with imprisonment up to seven years, to which fine may be added, or with fine.**
- **COMMITTING DEPREDATION ON TERRITORIES OF FOREIGN STATE AT PEACE WITH GOVERNMENT OF INDIA (Section 154):**
 - Anyone who commits depredation or prepares to commit depredation on the territories of a foreign State at peace with the Government of India shall **be punished with imprisonment for up to seven years and shall also be liable to fine, and forfeiture of any property used or intended for such actions.**
- **RECEIVING PROPERTY TAKEN BY WAR OR DEPREDATION MENTIONED IN SECTIONS 153 AND 154 (Section 155):**
 - Receiving property, knowing it was taken during the commission of offenses under sections 153 and 154, shall **be punishable with imprisonment for up to seven years, along with a fine and forfeiture of the received property.**
- **PUBLIC SERVANT VOLUNTARILY ALLOWING PRISONER OF STATE OR WAR TO ESCAPE (Section 156):**
 - A public servant, entrusted with the custody of a State prisoner or prisoner of war, who willingly allows the prisoner to escape from confinement, shall **be liable to punishment with life imprisonment or imprisonment up to ten years, and shall also be liable to fine.**
- **PUBLIC SERVANT NEGLIGENTLY SUFFERING SUCH PRISONER TO ESCAPE (Section 157):**

- A public servant, responsible for the custody of a State prisoner or prisoner of war, who negligently allows such prisoner to escape from confinement, shall **be punished with simple imprisonment for up to three years, along with a fine.**
- **AIDING ESCAPE OF, RESCUING OR HARBOURING SUCH PRISONER (Section 158):**
 - Anyone who knowingly helps a State prisoner or prisoner of war escape from lawful custody, rescues or attempts to rescue such a prisoner, harbors or conceals an escaped prisoner, or resists their recapture shall **be liable to punishment with life imprisonment or imprisonment up to ten years, along with fine.**
 - **If a State prisoner or prisoner of war, who is allowed to be outside custody on parole within specific limits in India, goes beyond those allowed limits, it is considered an escape from lawful custody.**

OF OFFENCES RELATING TO THE ARMY, NAVY AND AIR FORCE CHAPTER VIII SECTION 159-168

- This Chapter deals with offences committed by civilians in relation to officers in Army, Navy and Airforce of the Government of India. The main objective of this chapter is **to maintain discipline and order in the Armed Forces of the Union.**
- **ABETTING MUTINY, OR ATTEMPTING TO SEDUCE A SOLDIER, SAILOR OR AIRMAN FROM HIS DUTY (Section 159):**
 - If anyone encourages an officer, soldier, sailor, or airman in the Indian Army, Navy, or Air Force to commit mutiny or tries to lead them away from their loyalty or duty, they shall **be punished with imprisonment for life or imprisonment for up to ten years, along with a fine.**
- **ABETMENT OF MUTINY, IF MUTINY IS COMMITTED IN CONSEQUENCE THEREOF (Section 160):**
 - If someone supports or encourages an officer, soldier, sailor, or airman in the Indian Army, Navy, or Air Force to commit mutiny, and if mutiny occurs as a result of that encouragement, they shall **be punished with death or with life imprisonment, or imprisonment for up to ten years, along with a fine.**
- **ABETMENT OF ASSAULT BY SOLDIER, SAILOR OR AIRMAN ON HIS SUPERIOR OFFICER, WHEN IN EXECUTION OF HIS OFFICE (Section 161):**
 - If someone encourages or supports an assault by an officer, soldier, sailor, or airman in the Indian Army, Navy, or Air Force on a superior officer while the superior officer is performing his duties, they shall **be punished with imprisonment for up to three years and shall also be liable to fine.**

- **ABETMENT OF SUCH ASSAULT, IF ASSAULT COMMITTED (Section 162):**
 - If someone encourages or supports an assault by an officer, soldier, sailor, or airman in the Indian Army, Navy, or Air Force on a superior officer while the superior officer is performing his duties, and if the assault happens as a result of that encouragement, they shall **be punished with imprisonment for up to seven years and shall also be liable to fine.**
- **ABETMENT OF DESERTION OF SOLDIER, SAILOR OR AIRMAN (Section 163):**
 - If someone encourages or supports the desertion of any officer, soldier, sailor, or airman in the Indian Army, Navy, or Air Force, they shall **be punished with imprisonment for up to two years, or with a fine, or with both.**
- **HARBOURING DESERTER (Section 164):**
 - If someone knowingly harbors an officer, soldier, sailor, or airman who has deserted from the Indian Army, Navy, or Air Force, they shall **be punished with imprisonment for up to two years or with fine, or with both.**
 - However, this provision **does not apply when the deserter is harbored by their spouse.**
- **DESERTER CONCEALED ON BOARD MERCHANT VESSEL THROUGH NEGLIGENCE OF MASTER (Section 165):**
 - If a deserter from the Indian Army, Navy, or Air Force is concealed on board a merchant vessel, the master or person in charge shall **be liable to a penalty, not exceeding three thousand rupees**, if they could have known about the concealment but for negligence or lack of discipline on the vessel.
- **ABETMENT OF ACT OF INSUBORDINATION BY SOLDIER, SAILOR OR AIRMAN (Section 166):**
 - If someone encourages and knows that they are supporting an act of insubordination by an officer, soldier, sailor, or airman in the Indian Army, Navy, or Air Force, and if the insubordination occurs as a result, they shall **be punished with imprisonment for up to two years or with fine, or with both.**
- **PERSONS SUBJECT TO CERTAIN ACTS (Section 167):**
 - Persons subject to the Air Force Act, 1950, the Army Act, 1950, and the Navy Act, 1957, **shall not liable to be punished under the BNS for offenses defined in this Chapter.**
- **WEARING GARB OR CARRYING TOKEN USED BY SOLDIER, SAILOR OR AIRMAN (Section 168):**
 - Anyone who, not being a soldier, sailor, or airman in the service of the Government of India, wears a uniform or carries any item resembling those used by such

personnel with the intent to deceive others into believing that he is part of the military, shall **be punished with imprisonment for up to three months, or with fine of up to two thousand rupees, or with both.**

OF OFFENCES RELATING TO ELECTIONS CHAPTER IX SECTION 169-177

- **The objective of this Chapter is to provide for the punishment for malpractices in connection with elections and attempts to safeguard the purity of system of elections in India.**
- **CANDIDATE, ELECTORAL RIGHT DEFINED (Section 169):**
 - **In this Chapter:**
 - **"Candidate"** refers to a person nominated for any election.
 - **"Electoral right"** encompasses the right of an individual to become or cease to be a candidate, or to participate or abstain from voting in an election.
- **BRIBERY (Section 170):**
 - **Giving a gratification to influence someone's electoral right or as a reward for exercising such a right, or accepting a gratification for oneself or another person for the same purpose, constitutes bribery.**
 - *Declarations of public policy or promises of public action are exempt from this offense.*
 - **Offering, agreeing to give, or attempting to procure a gratification is treated as giving a gratification.**
 - **Obtaining, agreeing to accept, or attempting to obtain a gratification is considered accepting a gratification. Accepting a gratification as a motive for doing something one does not intend to do or as a reward for actions falls under bribery.**
- **UNDUE INFLUENCE AT ELECTIONS (Section 171):**
 - **Anyone who voluntarily interferes or attempts to interfere with the free exercise of any electoral right commits the offense of undue influence at an election.**
 - **Anyone who threatens a candidate or voter with injury or induces a candidate or voter to believe they will incur divine displeasure or spiritual censure interferes with the free exercise of the electoral right.**
 - **Declarations of public policy, promises of public action, or the mere exercise of a legal right without intent to interfere with an electoral right are not deemed to be interference under this section.**
- **PERSONATION AT ELECTIONS (Section 172):**

- If someone, during an election, applies for a voting paper using the name of another person (living or dead) or a fake name, or if they have already voted and try to vote again in their own name, it is considered the offense of personation at an election.
- This **does not apply** if a person is authorized to vote as a proxy for someone else according to the existing laws.
- **PUNISHMENT FOR BRIBERY (Section 173):**
 - If someone commits the offense of bribery, they shall **be punished with imprisonment for up to one year, or with a fine, or with both.**
 - If bribery involves treating, it will **be punished with a fine only.**
 - **Treating refers to** bribery where the gratification involves providing food, drink, entertainment, or provision.
- **PUNISHMENT FOR UNDUE INFLUENCE OR PERSONATION AT AN ELECTION (Section 174):**
 - If someone commits the offense of undue influence or personation at an election, they shall **be punished with imprisonment for up to one year, or with a fine, or with both.**
- **FALSE STATEMENT IN CONNECTION WITH AN ELECTION (Section 175):**
 - If someone intentionally makes or publishes a false statement about the personal character or conduct of a candidate to influence the election result, they shall **be punished with a fine.**
- **ILLEGAL PAYMENTS IN CONNECTION WITH AN ELECTION (Section 176):**
 - If someone spends money on behalf of a candidate for election without the candidate's written authority, they shall **be fined up to ten thousand rupees.**
 - If the person **gets written approval from the candidate within ten days for expenses not exceeding ten rupees, it will be considered authorized.**
- **FAILURE TO KEEP ELECTION ACCOUNTS (Section 177):**
 - If someone, as required by law, fails to keep accounts of expenses related to an election, they shall **be fined up to five thousand rupees.**

OF OFFENCES RELATING TO COIN, CURRENCY-NOTES, BANK-NOTES, AND GOVERNMENT STAMPS CHAPTER X SECTION 178-188

- **COUNTERFEITING COIN, GOVERNMENT STAMPS, CURRENCY-NOTES OR BANK-NOTES (Section 178):**

- Anyone who counterfeits or knowingly engages in the process of counterfeiting coins, revenue stamps, currency notes, or banknotes shall **be punished with imprisonment for life or up to ten years, along with a fine.**

MEANING

- **"Bank Note" means** a promissory note or engagement for the payment of money to the bearer on demand. It is issued by a person engaged in banking anywhere globally or by or under the authority of a State or Sovereign Power. The purpose is for it to be used as equivalent to or as a substitute for money.
- **"Coin" means** any metal used as money, stamped, and issued by or under the authority of any State or Sovereign Power, as defined in the Coinage Act, 2011.
- **Counterfeiting a government stamp involves** making a genuine stamp of one denomination appear like a genuine stamp of a different denomination.
- **A person commits Counterfeiting of coin when** the person, with the intent to deceive or knowing that deception is likely, makes a genuine coin appear like a different coin.
- The **offense of "counterfeiting coin" also covers** reducing the weight, changing the composition, or altering the appearance of the coin.

- **USING AS GENUINE, FORGED OR COUNTERFEIT COIN, GOVERNMENT STAMP, CURRENCY-NOTES OR BANK-NOTES (Section 179):**
 - Anyone who knowingly imports, exports, sells, delivers, buys, receives, traffics, or uses as genuine any forged or counterfeit coin, stamp, currency-note, or bank-note shall **be punished with imprisonment for life or imprisonment for a term up to ten years, along with a fine.**
- **POSSESSION OF FORGED OR COUNTERFEIT COIN, GOVERNMENT STAMP, CURRENCY-NOTES OR BANK-NOTES (Section 180):**
 - Anyone found in possession of a forged or counterfeit coin, stamp, currency-note, or bank-note, knowing or believing it to be fake and with the intent to use it as genuine, shall **be punished with imprisonment for up to seven years or with fine, or with both.**
 - If the person can prove the lawful source of possession, it will not be considered an offense under this section.
- **MAKING OR POSSESSING INSTRUMENTS OR MATERIALS FOR FORGING OR COUNTERFEITING COIN, GOVERNMENT STAMP, CURRENCY-NOTES OR BANK-NOTES (Section 181):**

- Anyone involved in making, mending, buying, selling, or possessing machinery, die, instrument, or material with the intent to forge or counterfeit coins, government revenue stamps, currency-notes, or bank-notes shall **be punished with imprisonment for life or up to ten years, along with a fine.**
- **MAKING OR USING DOCUMENTS RESEMBLING CURRENCY-NOTES OR BANK-NOTES (Section 182):**
 - Anyone creating, causing to be made, or using a document that looks like a currency-note or bank-note, or is so similar that it could deceive, may **be subject to a fine of up to three hundred rupees.**
 - If someone, whose name is on an illegal document, refuses to tell the police officer the name and address of the person who made it, they shall **be fined up to six hundred rupees.**
 - If a person is charged with an offence related to a document, and someone's name is on that document or on another document connected to it, **it is presumed, unless proven otherwise, that the person caused the document to be made.**
- **EFFACING WRITING FROM SUBSTANCE BEARING GOVERNMENT STAMP, OR REMOVING FROM DOCUMENT A STAMP USED FOR IT, WITH INTENT TO CAUSE LOSS TO GOVERNMENT (Section 183):**
 - If someone intentionally removes or erases any writing or document from a substance that carries a government-issued revenue stamp, or takes off a stamp used for a document to use it on another, with the fraudulent intent to cause a loss to the government, they shall **be punished with imprisonment for up to three years, or with a fine, or with both.**
- **USING GOVERNMENT STAMP KNOWN TO HAVE BEEN BEFORE USED (Section 184):**
 - If someone knowingly and with the intent to cause a loss to the government uses a stamp issued by the government for revenue purposes, which has been used before, they shall **be punished with imprisonment for up to two years, or with a fine, or with both.**
- **ERASURE OF MARK DENOTING THAT STAMP HAS BEEN USED (Section 185):**
 - If someone fraudulently erases or removes a mark on a government-issued revenue stamp indicating its use, with the intent to cause a loss to the government, or knowingly possesses, sells, or disposes of such a stamp, they shall **be punished with imprisonment for up to three years, or with fine, or with both.**
- **PROHIBITION OF FICTITIOUS STAMPS (Section 186):**
 - Anyone who makes, knowingly uses, deals in, sells, or possesses a fictitious stamp for postal purposes, or possesses any die, plate, instrument, or materials for

making fictitious stamps without lawful excuse, shall **be punished with a fine of up to two hundred rupees.**

- Any stamp, die, plate, instrument, or materials for making fictitious stamps found in possession of a person **may be seized and, upon seizure, shall be forfeited.**
 - **"Fictitious stamp"** refers to any stamp falsely claiming to be issued by the Government for denoting a postage rate, or any imitation or representation of such a stamp.
 - In this section and the related sections (Section 178 to 181 and 183 to 185), when the term "Government" when used in connection with, or in reference to any stamp issued for the purpose of denoting a rate of postage, shall **be deemed to include the person or persons authorized by law to administer executive Government in any part of India or in any foreign country.**
- **PERSON EMPLOYED IN MINT CAUSING COIN TO BE OF DIFFERENT WEIGHT OR COMPOSITION FROM THAT FIXED BY LAW (Section 187):**
 - Any person employed in a legally established mint in India who intentionally takes action or neglects duties to alter the weight or composition of a coin issued from that mint, deviating from the legal standards, shall **be punished with imprisonment for up to seven years and shall also be liable to fine.**
 - **UNLAWFULLY TAKING COINING INSTRUMENT FROM MINT (Section 188):**
 - Anyone who, without lawful authority, removes any coining tool or instrument from a legally established mint in India shall **be punished with imprisonment for a term up to seven years and shall also be liable to fine.**

OF OFFENCES AGAINST THE PUBLIC TRANQUILLITY CHAPTER XI SECTION 189-197

- **UNLAWFUL ASSEMBLY (Section 189):**
 - **A gathering of five or more people** becomes an "unlawful assembly" **if they share a common purpose, such as:**
 - *using criminal force* to overawe the Central Government, State Government, Parliament, Legislature, or a public servant.
 - *resisting the execution* of any law or legal process.
 - *committing mischief, criminal trespass, or other offenses.*
 - *using criminal force to take possession* of property, deprive someone of their rights, or enforce a supposed right.
 - *using criminal force to compel someone* to do something they are not legally bound to do or to refrain from a legal action.
 - ✚ *An assembly that was initially lawful can later become unlawful.*
 - **If someone:**
 - *knows that a gathering has become unlawful and intentionally joins or stays in it,* they are considered a member of an unlawful assembly. Such

a member shall **be punished with imprisonment for up to six months or with fine, or with both.**

- o *joins or remains in an unlawful assembly despite knowing* that it has been lawfully ordered to disperse, they shall **be punished with imprisonment for up to two years or with fine, or with both.**
- o *armed with a deadly weapon or anything likely to cause death*, is part of an unlawful assembly, they shall **be punished with imprisonment for up to two years or with fine, or with both.**
- o *knowingly stays in an assembly of five or more persons that is likely to cause a disturbance of public peace* after being lawfully commanded to disperse, they shall **be punished with imprisonment for up to six months or with fine, or with both.**

✚ If the assembly is unlawful, the offender will be punished accordingly.

- **Anyone who:**

- o *hires, engages, employs, promotes, or knowingly supports the hiring of a person to join an unlawful assembly* shall **be punished as a member of that unlawful assembly.** The person will be held accountable for any offenses committed by the hired individual as a member of the unlawful assembly, as if the person themselves were a member or had committed those offenses.
- o *knowingly shelters, receives, or gathers people in their house or premises*, being aware that these individuals have been hired, engaged, or employed, or are about to be hired, engaged, or employed to join or become members of an unlawful assembly, shall **be punished with imprisonment for up to six months, or with a fine, or with both.**
- o *is hired, engaged, or attempts to be hired or engaged to do or assist in doing any of the acts as specified in the first provision of this section* shall **be punished with imprisonment for up to six months, or with a fine, or with both.**

✚ anyone who *while engaged or hired as referred to above, goes armed or engages in or offers to go armed* with any deadly weapon or anything likely to cause death as a weapon of offense shall **be punished with imprisonment for up to two years, or with a fine, or with both.**

- **EVERY MEMBER OF UNLAWFUL ASSEMBLY GUILTY OF OFFENCE COMMITTED IN PROSECUTION OF COMMON OBJECT (Section 190):**

- **If a crime is committed by any member of an unlawful assembly as part of the common goal of the assembly**, or something that the members knew was likely to happen in pursuit of that goal, **every person who is a member of the same assembly at the time of the offense is also guilty of that offense.**

- **RIOTING (Section 191):**

- **When an unlawful assembly, or any member of it, uses force or violence in pursuit of their common objective**, every member of that assembly is guilty of the offense of rioting.
 - **Punishment:** *imprisonment up to two years, or with fine, or with both.*
 - If someone participates in a riot while carrying a deadly weapon or anything that can be used to cause harm, they shall **be punished with imprisonment up to five years or with fine, or with both.**
- **WANTONLY GIVING PROVOCATION WITH INTENT TO CAUSE RIOT-IF RIOTING BE COMMITTED; IF NOT COMMITTED (Section 192):**
- If someone intentionally provokes another person, knowing it might lead to a riot, they shall **be punished with imprisonment up to one year or with fine, or with both, if the riot occurs.**
 - If the *riot does not happen*, the punishment shall **be up to six months imprisonment or with fine, or with both.**
- **LIABILITY OF OWNER, OCCUPIER, ETC., OF LAND ON WHICH AN UNLAWFUL ASSEMBLY OR RIOT TAKES PLACE (Section 193):**
- If there is an unlawful assembly or riot on someone's land, the owner or occupier must inform the nearest police station promptly and take lawful measures to prevent or stop it. Failure to do so, with knowledge or belief of the offense, shall **be punishable with fine not exceeding one thousand rupees.**
 - If a riot benefits or is on behalf of a person linked to certain land or a dispute, that person shall **be fined if they or their representatives, aware of the likelihood of the riot, do not take lawful measures to prevent it or disperse the unlawful assembly.**
 - If a riot occurs for the benefit of a person related to the land or a dispute, that person shall **be fined if they or their representatives don't take lawful measures to prevent the riot or disperse the unlawful assembly, knowing it was likely to happen.**
- **AFFRAY (Section 194):**
- If **two or more people fight in a public place, causing a disturbance to public peace**, it is referred to as committing an affray.
 - **Punishment:** *imprisonment for up to one month or with fine of up to one thousand rupees or with both.*
- **ASSAULTING OR OBSTRUCTING PUBLIC SERVANT WHEN SUPPRESSING RIOT, ETC. (Section 195):**
- If anyone attacks or obstructs a public servant while they are performing their duty to disperse an unlawful assembly, suppress a riot, or handle an affray, they shall **be punished with imprisonment up to three years, or with fine of not less than twenty-five thousand rupees, or with both.**

- If someone threatens or tries to obstruct a public servant, or uses force against them while they're doing their duty to disperse an unlawful assembly, suppress a riot, or handle an affray, they shall **be punished with imprisonment for up to one year, or with fine, or with both.**
 - **Promoting enmity between different groups on grounds of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony (Section 196):**
 - **Anyone:**
 - o *promoting* disharmony or fostering feelings of enmity, hatred, or ill-will between different religious, racial, language, or regional groups through words, signs, visible representations, electronic communication, or other means can be held accountable; or
 - o *engaging* in actions that harm the harmony between different religious, racial, language, or regional groups, causing or likely to cause a disturbance to public tranquility, is prohibited; or
 - o *organizing or participating* in activities with the intent to train participants to use criminal force or violence against any religious, racial, language, or regional group, causing fear or insecurity among its members, is prohibited.

shall **be punished with imprisonment up to three years, or with fine, or with both.**

 - Committing the offense specified above in a place of worship or during religious ceremonies shall **be punishable with imprisonment up to five years and shall also be liable to fine.**
- **IMPUTATIONS, ASSERTIONS PREJUDICIAL TO NATIONAL INTEGRATION (Section 197):**
 - **Anyone by using spoken or written words, signs, visible representations, electronic communication, or any other means:**
 - o *makes statements* that suggest a group of people cannot, due to their identity, pledge allegiance to the Constitution or uphold India's sovereignty and integrity is not allowed; or
 - o *advocates or spreads the idea* that any group of people, based on their religious, racial, language, or regional identity, should be denied or deprived of their rights as Indian citizens is prohibited; or
 - o *makes or publishes statements, pleas, or appeals* that, based on identity, create disharmony or foster feelings of enmity, hatred, or ill-will between a group and others is not allowed; or
 - o *makes or publishes false or misleading information*, jeopardising the sovereignty, unity and integrity or security of India

shall **be punished with imprisonment up to three years, or with fine, or with both.**

- Committing the offences specified above in a place of worship or during religious ceremonies shall **be punished with imprisonment for up to five years and shall also be liable for fine.**